

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400896	THE LINKS AT DESERT FALLS HOMEOWNERS ASSOCIATION, A NONPROFIT MUTUAL BENEFIT CORPORATION VS GLASS	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: Cross-defendant The Links at Desert Falls Homeowners Association's motion for judgment on the pleadings is DENIED.

A motion for judgment on the pleadings is properly granted in a cross-defendant's favor if "[t]he [cross-complaint] does not state facts sufficient to constitute a cause of action against that [cross-defendant]." (CCP 438(c)(1)(B)(ii).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).) Notice may also be taken "of the truth of the content of court records . . . when the existence of the record itself . . . bind[s] a party for purposes of res judicata or collateral estoppel." (*Columbia Casualty Co. v. Northwestern Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 473.)

In her answer, cross-complainant Alva Glass asserts "selective enforcement," "discrimination," "harassment," "defamation," "infringement fines," "inaccurate accounting," and "retaliation" as affirmative defenses to the complaint filed by cross-defendant. The court determined cross-complainant failed to produce evidence supporting these defenses and granted cross-defendant's motion for summary judgment. Based on this, cross-defendant claims the causes of action asserted in the cross-complaint are now barred by collateral estoppel or res judicata, entitling it to judgment on the pleadings.

But collateral estoppel bars the relitigation of an issue only if "the issue is identical to an issue decided in a prior proceeding." (*Bostick v. Flex Equipment Co., Inc.* (2007) 147 Cal.App.4th 80, 96.) The cross-complaint asserts causes of action for housing discrimination under federal and state law, Unruh Act violations, intentional infliction of emotional distress, and disability discrimination. Due to the sparse nature of cross-complainant's answer and the inexact, lay verbiage used therein, it is pure speculation that " "identical factual allegations" " underlie the causes of action raised in the complaint and cross-complaint. (*Ibid.*) The cross-complaint is thus not barred by collateral estoppel (*ibid.*) or res judicata (see *Levy v. Cohen* (1977) 19 Cal.3d 165, 171 [res judicata requires identity of issues]).

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400896	THE LINKS AT DESERT FALLS HOMEOWNERS ASSOCIATION, A NONPROFIT MUTUAL BENEFIT CORPORATION VS GLASS	MOTION FOR ATTORNEY FEES

Tentative Ruling: Plaintiff The Links at Desert Falls Homeowners Association's unopposed motion for attorney fees is GRANTED.

The prevailing party in an action to enforce governing documents "shall be awarded reasonable attorney[] fees and costs." (CC 5975(c).) Plaintiff's governing documents also state that an owner against whom an enforcement act is successfully prosecuted shall be liable for attorney fees.